

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

Served: January 23, 2024

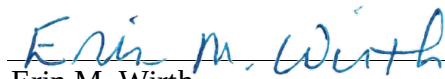
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON RESPONDENT’S PARTIAL CONSENT MOTION TO EXTEND DISCOVERY

On January 17, 2024, Respondent moved to extend three discovery deadlines. The first two requests are for minor changes to discovery deadlines, and these requests are granted. Respondent also requests an indefinite extension of the close of discovery to receive discovery from a non-party. Ruling on this request will be held in abeyance.

The deposition of Alla Solovyeva, the owner of Respondent Marine Transport Logistics, Inc. (“MTL”), was postponed from January 15, 2024, to January 27, 2024, because of an urgent medical procedure for Ms. Solovyeva. Therefore, Respondent requests that the deposition deadline for Ms. Solovyeva be extended from January 19, 2024, to January 28, 2024. In case the deposition generates requests for supplemental discovery, Respondent requests that the deadline to serve written discovery requests be extended from January 26, 2024, to February 2, 2024. Motion at 1-3. Counsel for Complainant consented to these requests. Motion at 2. These requests are reasonable and are granted.

Next, Respondent requests an indefinite extension of the close of discovery, but only for the purpose of taking discovery from non-party CIS Development Foundation, Inc. (“CIS”). On December 13, 2023, a subpoena for documents and testimony was issued to CIS, which has not responded and has not moved to quash. Respondent filed a notice of intent to enforce the subpoena with the United States District Court for the District of New Jersey. Motion at 3-4. Complainant has not consented to this extension request and has not yet filed a response to the motion. Moreover, non-party CIS may provide the requested discovery at any point. Therefore, this request is held in abeyance. If the CIS discovery is not provided in time to meet the current deadline for the close of discovery, the parties should file a joint status report by February 15, 2024, describing the status of this discovery request and renewing any requests for extension at that time.


Erin M. Wirth
Chief Administrative Law Judge